

		\$12,500.00 for attorneys' costs (see No. 1 below); \$4,947.00 for settlement administration fees; and \$70,053.00 total PAGA penalties (\$52,539.75 to LWDA). 1. Plaintiff's counsel previously sought \$18,399.66 in costs. See 6/5/25 Order (ROA 98, No. 7). In its June 5, 2025 order, the court ordered plaintiff to explain in the supplemental filing why costs totaling almost 15% of the gross settlement amount are reasonable. <i>Id.</i> Plaintiff did not do so. Instead, plaintiff's counsel attempted to justify particular costs (Supp. Moon. Decl. ¶ 7), which did not address the court's inquiry, i.e., why, in the context of the settlement here, is the total amount of costs reasonable? In its September 11, 2025 order (ROA 117, No. 3), the court again inquired regarding the reasonableness of the amount of costs. In the February 18, 2026 second supplemental declaration of counsel (ROA 123), plaintiff's counsel did not squarely address the court's question, and instead asserted that "the relevant consideration is not whether costs totaling a certain percentage of the gross settlement amount are reasonable; it is whether costs—in the context of the PAGA settlement generally—contribute to the remediation of present labor law violations and deterrence of future ones, and/or help maximize enforcement of state labor laws." Second Supp. Moon Decl. (ROA 123) ¶ 3. Plaintiff's counsel has not persuasively explained why the amount of costs sought are reasonable in the context of this settlement. Considering this settlement, the court awards reasonable and necessary litigation costs in the amount of \$12,500.00. The final accounting hearing is scheduled for <u>March 18, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
2	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Albino Alvira's Motion to Compel Deposition</u> Plaintiff Albino Alvira moves for an order compelling defendant Pampanga Food Company, Inc. to appear for a person most knowledgeable (PMK) deposition. For the following reasons, plaintiff's motion is granted. <i>Background</i> Plaintiff states that on February 6, 2026 he served a notice for a deposition of defendant's PMK. Brief (ROA 159) at 2:21; Hyun Decl. (ROA 163) Ex. A. The notice lists 21 examination topics and 43 categories of documents; the notice set the deposition for

February 20, 2026. Hyun Decl. (ROA 163) Ex. A. (Plaintiff states in his reply that he not seeking to compel compliance with the document categories. ROA 213 at 6:21-22.) Plaintiff did not submit a proof of service of the deposition notice with his motion papers, but defendant concedes it received the deposition notice on or about February 6, 2026. Vanderpool Decl. (ROA 211) ¶ 3. Defendant served objections to the deposition notice on February 10, 2026. Hyun Decl. Ex. C. Defendant's objections state "General Objections (Deposition)," "General Objections (Document Requests)," and "Specific Objections" to the document categories. *Id.* Defendant did not move for an order staying the taking of the deposition and/or quashing the deposition notice.

Following various emails between counsel (Hyun Decl. Ex. B), on February 16, 2026 defendant's counsel emailed plaintiff's counsel that defendant could appear for the deposition on March 17 or March 24, 2026. *Id.* Ex. E. On February 17, 2026 plaintiff's counsel replied that plaintiff would not agree to delay the February 20 deposition to either of those dates due to plaintiff's April 13, 2026 deadline to file his motion for class certification. *Id.* (On April 10, 2026 plaintiff sought and obtained an extension of the class certification motion filing deadline to August 31, 2026. ROA 205.) Defendant's counsel replied the same day that defendant would not attend the deposition on February 20. *Id.* Plaintiff nevertheless appeared for the deposition on February 20 and took a certificate of nonappearance. *Id.* Ex. D. The transcript of that proceeding reflects that plaintiff's counsel stated: "Although this deposition was properly noticed, there have been no written objections to the deposition notice including the requests for production of documents, and the deponent did not produce documents to the 43 document requests in the notice of deposition." *Id.* Ex. D (at 5:3-7).

On March 2, 2026 plaintiff's counsel emailed defendant's counsel that plaintiff would take the deposition on March 17 and 24, 2026. *Id.* Ex. E. Defendant's counsel replied the same day that defendant would not appear for any deposition if plaintiff intended to add new parties. *Id.* Defendant's counsel then replied that his client was not available for the deposition on March 17 or March 24 after all. *Id.*; Vanderpool Decl. ¶ 15. Plaintiff's counsel asked for other available dates in March. Hyun Decl. Ex. E. The parties then exchanged more emails between March 2 and March 6, which can be summarized as: (i) defendant's counsel did not provide any other dates; (ii) plaintiff's counsel wrote that he would prefer to resolve this issue without motion practice; and (iii) defendant's counsel replied, "The problem Daniel is that you are pretty strident and demanding on dates that are simply not available." *Id.* Ex. E. Plaintiff filed the instant motion on March 13, 2026.

Relevant law

Civil Procedure Code section 2025.410 states, in relevant part:

- (a) Any party served with a deposition notice that does not comply with Article 2 (commencing with Section

		2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served. (b) If an objection is made three calendar days before the deposition date, the objecting party shall make personal service of that objection pursuant to Section 1011 on the party who gave notice of the deposition. Any deposition taken after the service of a written objection shall not be used against the objecting party under Section 2025.620 if the party did not attend the deposition and if the court determines that the objection was a valid one. (c) In addition to serving this written objection, a party may also move for an order staying the taking of the deposition and quashing the deposition notice. This motion shall be accompanied by a meet and confer declaration under Section 2016.040. The taking of the deposition is stayed pending the determination of this motion. Civ. Proc. Code § 2025.410. Section 2025.450 states, in relevant part: (a) If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (b) A motion under subdivision (a) shall comply with both of the following: (1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice. (2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and
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		produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. <i>Discussion</i> Defendant argues plaintiff's motion should be denied because plaintiff allegedly did not meet and confer in good faith to attempt to resolve this dispute. As evidenced by the parties' correspondence, plaintiff repeatedly attempted to obtain a deposition date from defendant's counsel for defendant's PMK deposition, with no success. Those efforts constituted a sufficient effort under prior law to resolve this dispute. Effective January 1, 2026, however, a meet and confer declaration in support of a motion must state facts showing a reasonable and good faith attempt "either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." Civ. Proc. Code § 2016.040(a). Plaintiff's counsel's declaration does not make this showing. Plaintiff's counsel's failure to comply with newly-amended section 2016.040(a) does not require denial of plaintiff's motion (<i>Obregon v. Superior Court</i> (1998) 67 Cal.App.4th 424, 434-35), although the court may consider it in evaluating the parties' respective sanctions requests. Civ. Proc. Code §§ 2023.010(i), 2023.020. Having reviewed all of the correspondence and other evidence submitted in support of and in opposition to the motion, the court finds that plaintiff's counsel's failure to comply with newly-amended section 2016.040(a) does not constitute reason to deny the motion. The parties next debate whether defendant's objections to the deposition notice were valid. This issue seems beside the point because neither party cites any law holding that service of valid objections to a PMK deposition notice forever absolves the objecting party of any obligation to appear for a deposition. Plaintiff's counsel's statement at the nonappearance that "there have been no written objections," while plainly wrong, is likewise beside point, including because plaintiff's counsel attached defendant's objections to his declaration filed in support of this motion. Hyun Decl. Ex. C. That being said, none of defendant's nonspecific and overbroad "General Objections" to the deposition notice constitutes good cause for the court to conclude the deposition should not occur or the examination topics should be preemptively modified. Objecting collectively to the entire deposition notice and its 21 topics and, moreover, doing so only "to the extent" the notice and/or unspecified topics seek various types of allegedly protected information is insufficient for the court to conclude defendants' "General Objections (Deposition)" have merit. Defendant cites no law holding that it need not appear for a PMK deposition. Indeed, defendant appears to concede that it must. Opp. (ROA 211) at 1:19, 5:23. Defendant is ordered to produce <u>by June 18, 2026</u> a PMK deponent(s) to address the topics identified in plaintiff's February 6, 2026 deposition notice. Defendant's request
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		for a vague order “limit[ing] testimony to matters known or reasonably available to Pampanga” is denied. Plaintiff’s request for sanctions is granted. Defendant Pampanga Food Company, Inc. shall pay sanctions in the amount of \$2,060 to plaintiff by June 18, 2026. Defendant’s request for sanctions is granted. Plaintiff Balbino Alvira shall pay sanctions in the amount of \$350 to defendant by June 18, 2026. Civ. Proc. Code § 2023.020. Plaintiff to give notice.
3	Cervantes De Cabrera v. United Exchange Corp., et al. 2025-01479201	<u>Defendant Partners Personnel-Management Services, LLC’s Motion to Compel Arbitration</u> <u>Defendants United Exchange Corp., Eugene Choi and Carol Choi’s Joinder</u> Defendant Partners Personnel-Management Services, LLC (“Partners”) moves for an order compelling arbitration of plaintiff Maria Cervantes de Cabrera’s individual claim, dismissing plaintiff’s class allegations, and staying plaintiff’s nonindividual PAGA claim pending completion of the arbitration. Defendants United Exchange Corp., Eugene Choi and Carol Choi (together, the “United Exchange defendants”) join Partners’ motion. For the following reasons, Partner’s motion is granted, and the United Exchange defendants’ unopposed joinder is granted. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>Existence of arbitration agreement</i> A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056. “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’ (<i>Espejo, supra</i>, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330].’ (<i>Condee, supra</i>, at pp. 218–219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence To bear this burden,